

In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)

Criminal Appeal No.1329 of 2024

In the matter of:

An appeal under Section 30 of the Special Powers Act, 1974.

-And-

In the matter of:

Md. Ashik Iqbal Joni

.... Accused-Appellant

-Versus-

The State

.... Opposite Party

Ms. Monira Parvin, Advocate

.... For the accused-appellant.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 5th March 2024

This is an appeal under Section 30 of the Special Powers Act, 1974.

In this case under Section 19-A of the Arms Act it has been alleged that the appellant Md. Ashik Iqbal Joni was an

activist of militant organization Ansar Al Islam. He was arrested on 28.02.2021 and from his possession one foreign made pistol, 2 bullets and militant literature were recovered and seized.

Ms. Monira Parvin, learned Advocate for the appellant submits that the appellant is in custody in connection of this case since 28.02.2021 but not a single witness has yet been examined.

It turns out from record that in above case charge has been framed on 10.07.2023 and the case has been fixed for recording of evidence.

In view of above materials on record we are not inclined to grant bail to the appellant at this point of time but we feel it necessary to pass a direction upon the Trial Court below for conclusion of the trial of the case expeditiously.

Accordingly, we are directing the learned Additional Joint Session Judge and Special Tribunal No.6, Gazipur to conclude the trial of the case within 6(six) months from the date of receipt of this order without allowing any adjournment beyond 15(fifteen) days.

The days covered by the adjournment obtained by the accused be excluded from above period.

But if the learned Judge fails to conclude the trial within above period he will have to explain in writing to this Court through the Registrar General, Supreme Court of Bangladesh as to why the trial could not be concluded.

The learned Judge shall also consider the petition for bail if any filed by the appellant with sympathy and in accordance with law.

The Superintendent of Police, Gazipur is directed to ensure that the prosecution witnesses are produced before the Trial Court on the date to be fixed by the Court without any fail.

Let copies of this order be sent to the Registrar General, Supreme Court of Bangladesh, learned Additional Joint Session Judge and Special Tribunal No.6, Gazipur and Superintendent of Police, Gazipur at once.

With above direction this appeal is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

MD. MASUDUR RAHMAN
BENCH OFFICER